

Affidavit of Successor Trustee

STATE OF MAINE
COUNTY OF HANCOCK

I. Affiants

We, John M. Flanagan and Christopher J. Flanagan ("Affiants"), being duly sworn, depose and state under penalty of perjury that the following is true and correct.

II. Trust

The Trust is known as the Flanagan Family 321 Trust ("Trust").

Type: Irrevocable

Date of Trust Agreement: 2005

Settlor: Dorothy E. Flanagan (deceased), of Ellsworth, Maine

III. Real Property

The Trust holds real property described as follows:

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

Hancock County, Maine

Deed Reference: TR 31 PG 07 PC 10

Legal Description: As set forth in Schedule A of the Trust Agreement

IV. Previous Trustees

The previous Co-Trustees of the Trust were:

Jane E Birkhead, of Ellsworth, Maine

Elizabeth Mary Young, of Portsmouth, New Hampshire

Both were named as initial Co-Trustees in the Trust Agreement pursuant to Article 10.1.

Both Co-Trustees have voluntarily resigned from their positions. Their signed Resignations of Trustee are dated _____ and _____, respectively.

V. Authority for Succession

Pursuant to Article 10.2 of the Trust Agreement, when both initial Trustees are unable to serve or continue serving as Trustees, the successor Trustee or Trustees shall be elected by a majority of the beneficiaries.

A vote of the beneficiaries was conducted on _____, 2026. A majority of the five (5) beneficiaries (the Settlor's living children) voted in favor of electing the undersigned as Successor Co-Trustees.

The Record of Beneficiary Vote is attached hereto as a supporting document.

VI. Successor Trustees

The Successor Co-Trustees of the Flanagan Family 321 Trust are:

John M. Flanagan

Address: _____

Christopher J. Flanagan

Address: _____

The Successor Co-Trustees recognize they are currently acting on behalf of the Trust. The Trust has not been revoked, modified, or amended in any manner which would cause the representations contained herein to be incorrect.

VII. Authority to Act

The authority to act on behalf of the Trust requires both (2) Successor Co-Trustees to sign, pursuant to Article 8.2 of the Trust Agreement, which provides that when only two Trustees are serving, the concurrence and joinder of both shall be required for all matters pertaining to the administration of the Trust.

VIII. Powers

The Successor Co-Trustees have full powers to sell, convey, mortgage, or encumber real and personal property under this Trust, subject to the provisions and limitations set forth in Articles V and VIII of the Trust Agreement and applicable Maine law.

IX. Recording

This Affidavit is executed for the purpose of recording in the Hancock County Registry of Deeds pursuant to 18-B M.R.S. Section 1013 of the Maine Uniform Trust Code, to provide public notice of the change in Trustees and to confirm the authority of the Successor Co-Trustees to act with respect to the real property held by the Trust.

X. Representations

The Affiants further state that:

1. The Trust Agreement has not been revoked or terminated.
2. The Trust Agreement has not been amended or modified in any manner that would affect the validity of this Affidavit.
3. The Affiants are authorized to execute documents, including deeds and mortgages, on behalf of the Trust with respect to the real property described herein.
4. The Affiants are not aware of any pending legal action that would affect the validity of this succession or the Trust's ownership of the real property.

XI. Execution

We, the Affiants, declare that this Affidavit has been examined by us and its contents are true and correct.

John M. Flanagan, Successor Co-Trustee
Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee
Signature: _____

Date: _____

Notary Acknowledgement

STATE OF MAINE
COUNTY OF HANCOCK

On _____, 2026, before me, _____ (Notary Public), personally appeared John M. Flanagan and Christopher J. Flanagan, who proved to me on the basis of satisfactory evidence to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacities as Successor Co-Trustees of the Flanagan Family 321 Trust, and that by their signatures on the instrument, the persons executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of Maine that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature: _____ (Seal)

Print Name: _____

My Commission Expires: _____

Supporting Documents

The following documents are attached to or accompany this Affidavit:

1. Resignation of Trustee – Jane E Birckhead (dated _____)
2. Resignation of Trustee – Elizabeth Mary Young (dated _____)
3. Record of Beneficiary Vote (dated _____)
4. Copy of the Flanagan Family 321 Trust Agreement (2005)

Recording Information (For Registry Use)

Hancock County Registry of Deeds
Ellsworth, Maine

Received: _____

Book: _____ Page: _____

Recording Fee: _____